**UNITED STATES DISTRICT COURT**

**FOR THE DISTRICT OF ARIZONA**

| | |
|---|---|
| Kevin D Turnage,<br><br>Plaintiff,<br><br>v.<br><br>**ROBERT F. KENNEDY, JR.,** Secretary,<br>U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES,<br>INDIAN HEALTH SERVICE,<br>THE GOVERNING BODY OF THE PHOENIX INDIAN MEDICAL CENTER,<br>ENDREYA MCCABE,<br>DORA BIRDSHEAD,<br>BRANDI BENJAMIN,<br>CANDACE LEE,<br>DEBRA WARD-LUND,<br>JASON WHITE,<br>CLINTON POPE,<br>TY REIDHEAD,<br>NAOMI HIXSON<br><br>Defendants. | Case No.: CV-25-03367-PHX-SMB<br><br>**EXHIBIT 3**<br><br>**Affidavit of Kevin D. Turnage** |

I. INTRODUCTION

1. My name is **Kevin D. Turnage**. I am the Plaintiff in this action and a career federal employee (GS-0610-12) serving as a **Nurse Consultant and Policy & Procedures Officer** at the Phoenix Indian Medical Center (PIMC), a component of the United States Indian Health Service (IHS).

2. I have personal knowledge of the matters set forth in this affidavit and, if called upon, could and would testify competently to the truth of these statements.

3. This affidavit is submitted in support of my **Motion for Protective Order (Preliminary Injunction)** and is attached as **Exhibit 3** to that motion.

II. PROTECTED DISCLOSURES

4. From **March 2022** through **June 2025** I made a series of protected disclosures that are covered by **5 U.S.C. § 2302(b)(8)** (Whistleblower Protection Act). Each disclosure was made in good-faith belief that the information revealed waste, fraud, abuse, or a substantial danger to public health and safety. The disclosures, their dates, recipients, and subject matter are listed chronologically below.

| Date | Recipient(s) | Subject Matter |
|---|---|---|
| 29 Mar 2022 | Office of Equal Employment Opportunity (EEO) | Initial hostile-work-environment complaint |
| 21 Mar 2023 – 7:33 a.m. | Headquarters (CEO and senior IHS leadership) | Escalation of a sexual-harassment complaint |
| 21 Feb 2024 | Debra Ward-Lund (IHS Executive), Office of Special Counsel (OSC) | Request to establish a Policy Committee and address multiple policy-governance violations |
| 1 Apr 2024 | Clinton Pope (Chief Quality Officer) | Follow-up on Policy Committee request; Pope responded dismissively |

| Date | Recipient(s) | Subject Matter |
|---|---|---|
| | | and accused me of using AI-generated communications |
| 21 May 2025 – 10:44 a.m. | OSC, Office of the Inspector General (OIG) | Protected-Disclosure Notice asserting protected activity under 5 U.S.C. § 2302(b)(8) |
| 28 May 2025 – 1:37 p.m. | Endreya McCabe, Clinton Pope, Marlon White, Tabitha Wright | Request for clarification of policy authority and allegation of obstruction of official duties |
| 9 Jun 2025 – 9:03 a.m. | Joint Commission; CMS Region 9; Senators Mark Kelly & Ruben Gallego; HHS-OIG | Reports of patient-safety violations, undisclosed bed-capacity reductions, fraud, waste, and abuse at PIMC |
| 9 Jun 2025 – 12:00 p.m. | HHS-OIG (multiple divisions) | Detailed allegations of fraud, waste, abuse, and policy non-compliance by senior IHS officials |
| 9 Jun 2025 – 2:30 p.m. | GAO – FraudNet | Report of material misrepresentation of hospital capacity during CMS survey |
| 14 Jun 2025 – 3:45 p.m. | OIG | Follow-up complaint concerning non-compliance with Indian Health Manual (IHM) Transmittal Notice 24-16 |

| Date | Recipient(s) | Subject Matter |
|---|---|---|
| 25 Jun 2025 – 4:40 p.m. | OSC | Supplemental information describing a pattern of retaliation and policy suppression |
| 26 Jun 2025 – 1:21 p.m. | IHS Headquarters DMEEO; OSC; Congressional offices (Sen. Gallego) | Formal retaliation complaint citing Title VII, 5 U.S.C. § 2302, and 5 C.F.R. Part 735 |
| 27 Jun 2025 – 8:24 a.m. | IHS Headquarters DRPC | Memorandum citing obstruction of position duties (PX-3147) and requesting reinstatement |
| 11 Jul 2025 – 10:47 a.m. | Dr. Endreya McCabe (IHS) | Verbal notice that my Administrative Leave was being converted to 30-day Investigative Leave without written justification |
| 18 Jul 2025 – 10:38 a.m. | Dr. Endreya McCabe; Dora Birdshead (Employee Relations); Michelle Rossell (Regional HR) | Email demanding immediate return of all government-issued property (PIV card, laptop, phone, keys) by 12:00 p.m. the same day |
| 24 Nov 2025 – 9:24 a.m. | Dr. Endreya McCabe | Notice Leave order (unsigned PDF) placing me on leave “until further notice” |

| Date | Recipient(s) | Subject Matter |
|---|---|---|
| 2 Dec 2025 – 2:37 p.m. | Victoria Gray (U.S. Department of Justice) | Email requesting an extension of the protective-order response deadline (later denied) |

These disclosures were made in accordance with the statutory protections afforded to federal employees who report wrongdoing.

III. RETALIATORY PERSONNEL ACTIONS, DUE-PROCESS DEFICIENCIES, AND IRREPARABLE HARM

5. Immediately after each protected disclosure, I was subjected to adverse personnel actions that constitute retaliation. The following chronological table lists each action, the due-process deficiency associated with it, and the resulting irreparable harm.

| Date(s) | Adverse Personnel Action | Due-Process Deficiency | Irreparable Harm |
|---|---|---|---|
| **21 Mar 2023 – 7:33 a.m.** (complaint escalation) → **10:14 a.m.** (placed on **Administrative Leave**) → | Placement on Administrative Leave and escort from property | No written threat/legitimate-interest analysis; no opportunity to respond | Immediate loss of access to workplace, public removal damaged professional reputation, abrupt |

| Date(s) | Adverse Personnel Action | Due-Process Deficiency | Irreparable Harm |
|---|---|---|---|
| **11:15 a.m.** (escorted off premises, property confiscated) | | | interruption of duties – a clear example of rapid retaliation |
| **27 Jun 2025 – 08:24 a.m.** | Placed on **Administrative Leave** after filing OIG and OSC complaints | No written determination or threat analysis provided | Continued inability to perform duties; reinforces perception of constructive suspension |
| **1 Jun 2025 – 7 a.m.** to **14 Jul 2025 – 10 workdays** | **Administrative Leave** (first period) | No written threat analysis; no opportunity to respond | Extended period of non-duty status created a constructive suspension |

| Date(s) | Adverse Personnel Action | Due-Process Deficiency | Irreparable Harm |
|---|---|---|---|
| **15 Jul 2025 – 26 Aug 2025 – 30 workdays** | **Investigative Leave** (first extension) | Extension communicated only by email; unsigned; no formal approval | Prolonged removal from duties without procedural justification |
| **27 Aug 2025 – 9 Oct 2025 – 30 workdays** | **Investigative Leave** (second extension) | Same unsigned, informal notice; no threat analysis | Ongoing inability to perform official functions; further reputational harm |
| **10 Oct 2025 – 25 Nov 2025 – 30 workdays** | **Investigative Leave** (third extension) | Same procedural deficiencies as prior extensions | Ongoing constructive suspension; escalation of retaliatory pattern |

| Date(s) | Adverse Personnel Action | Due-Process Deficiency | Irreparable Harm |
|---|---|---|---|
| **25 Nov 2025 – 9 Dec 2025** | **Notice Leave** (until further notice) | Unauthenticated PDF; no written threat or opportunity to respond | Indeterminate period of exclusion from workplace; creates perpetual uncertainty |
| **11 Jul 2025 – 10:47 a.m.** | Verbal conversion of **Administrative Leave** to **30-day Investigative Leave** | No written notice meeting statutory requirements; no threat analysis | Immediate change in status without due process, reinforcing retaliation |
| **18 Jul 2025 – 10:38 a.m.** | Demand to return all government property (PIV card, laptop, phone, keys) by 12:00 p.m. the same day | Unreasonable deadline; no written justification; no threat analysis | Sudden loss of access to federal systems; inability to perform any work functions |

| Date(s) | Adverse Personnel Action | Due-Process Deficiency | Irreparable Harm |
|---|---|---|---|
| **24 Nov 2025 – 9:24 a.m.** | **Notice Leave** order (unsigned PDF) placing me on leave "until further notice" | No written threat analysis; no opportunity to respond; lack of signature | Ongoing restriction from workplace with no clear end date |
| **25 May 2025 – 10:44 a.m.** | Issuance of **Protected-Disclosure Notice** asserting protected activity | No procedural follow-up; agency failed to acknowledge protected status | Heightened risk of further retaliation; chilling effect on future disclosures |
| **28 May 2025 – 1:37 p.m.** | Directive to remove myself from all approval workflows | No written determination; no threat analysis; no opportunity to contest | Direct interference with core duties as Policy & Procedures Officer; loss of functional authority |

| Date(s) | Adverse Personnel Action | Due-Process Deficiency | Irreparable Harm |
|---|---|---|---|
| **June 2025 – Ongoing** | **Administrative Absence for Investigation** – I was placed on administrative absence for investigation; the agency has not fully communicated the status or purpose of the investigation. The only interview conducted was a sham interview aimed at creating a hostile work environment against the Chief Quality Officer after I reported his violation of Federal Law. | No written threat/legitimate-interest analysis; no notice of the investigation's scope; sham interview used as retaliation; no opportunity to respond | Continued inability to perform official duties; further damage to professional reputation; evidence of targeted retaliation to silence protected disclosures |

Each of the above actions was taken **without compliance** with the due-process requirements of **5 U.S.C. § 7513(b)**, **5 C.F.R. § 630.1505(b)**, and the **Indian Health Manual (IHM)**, which mandates written, signed approvals for any leave extension exceeding 14 days and requires documentation of any change in duty status.

IV. DUE-PROCESS FAILURES (SUMMARY)

6. All adverse actions listed above suffered the same fundamental deficiencies:

- **Absence of a written threat or legitimate-interest analysis** required by statute.

- **No opportunity for me to respond** before the action took effect.

- **Lack of signatures or formal approvals** for leave extensions, violating both federal law and IHM requirements.

- **Unreasonable deadlines** for property return and workflow removal, failing the "reasonable time" standard.

These failures render each action unlawful under the Whistleblower Protection Act and the Merit Systems Protection Act.

V. IRREPARABLE HARM

7. Although I remain on **paid non-duty status** and therefore have not suffered loss of salary, benefits, or seniority, I have endured **significant non-monetary injuries** that constitute irreparable harm:

- **Damage to professional reputation** – Public disciplinary-type leave orders, confiscation of credentials, and removal from approval workflows have been communicated to colleagues, external partners, and regulatory agencies, creating a lasting stain on my reputation as a nurse consultant and policy expert.

- **Inability to perform official duties** – The successive leaves, removal from approval workflows, and denial of facility access have **completely prevented me from exercising the duties of my position**, rendering me a constructive suspension under **5 U.S.C. § 7512(2)**.

- **Ongoing threat of further retaliation** – The pattern of increasingly restrictive actions (administrative → investigative → notice leave) demonstrates a continuing and escalating threat that will persist unless the Court enjoins IHS from taking any further adverse personnel action.

- **Chilling effect on federal employees** – My experience, documented in multiple filings with the OSC, OIG, CMS, and Congress, sends a clear message to other federal employees that protected disclosures will be met with retaliation, undermining the purpose of the Whistleblower Protection Act and the public interest in encouraging the reporting of waste, fraud, and abuse.

Because the harm is **non-monetary, ongoing, and cannot be adequately remedied by money**, injunctive relief is essential to prevent further retaliation, to restore my ability to perform my official duties, and to protect the integrity of federal whistleblower protections.

VI. CONCLUSION

8. I **declare under penalty of perjury** that the foregoing statements are true and correct to the best of my knowledge, information, and belief.

**Date:** December 16, 2025

**Kevin D. Turnage**
1003 E. Pinto Ct.
Gilbert, AZ 85296
Phone: 901-220-8664
E-mail: kdturnage@protonmail.com